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General Knowledge

Indian Polity

STUDY NOTES

Union and its Territory

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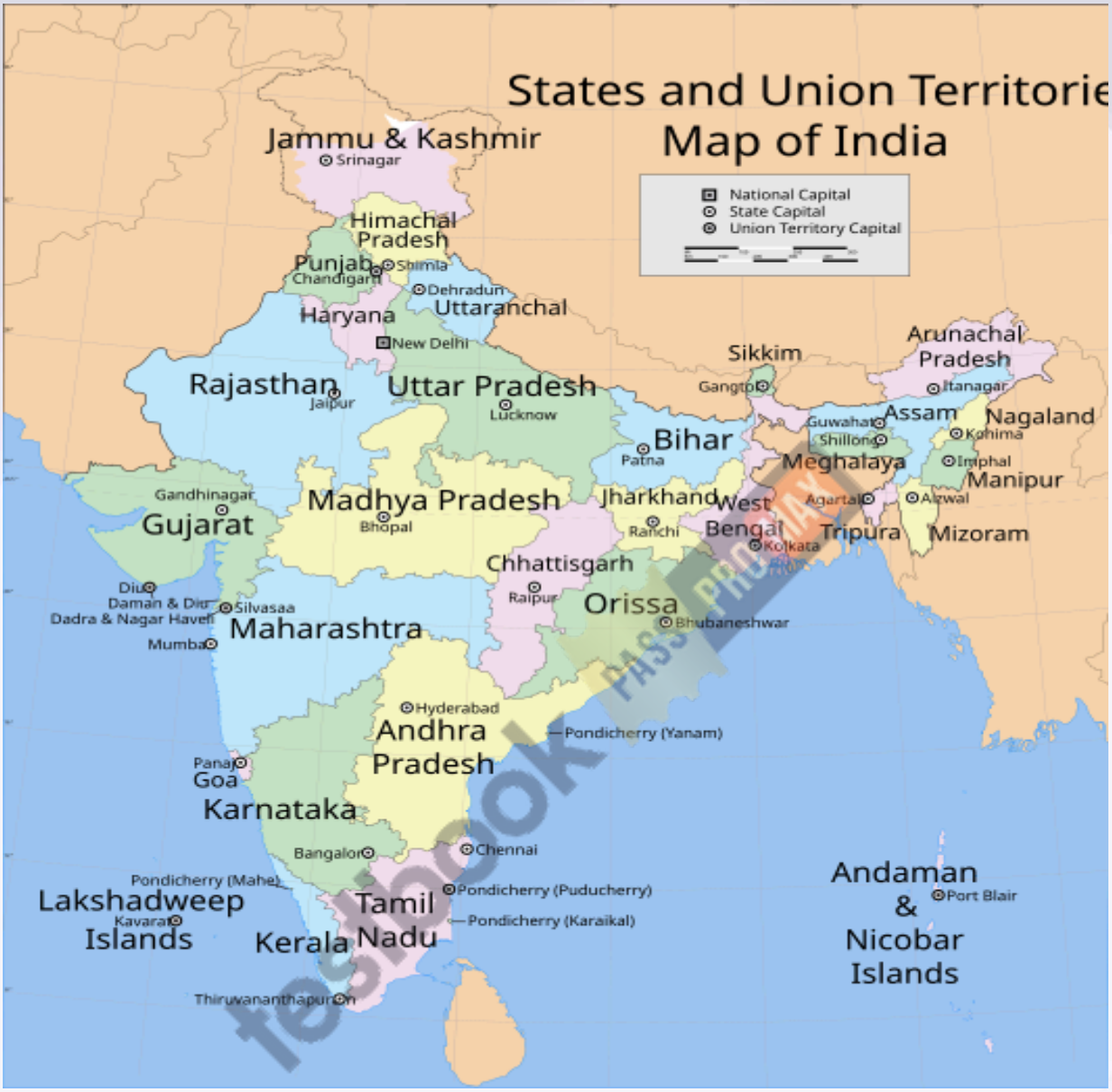


Historical Background:

- **Pre-Independence:** Before 1947, India was divided into British Indian provinces and princely states. After independence, integrating these diverse regions was a major challenge.
- **Integration of Princely States: Sardar Vallabhbhai Patel** led efforts to integrate **over 500 princely states** into India. Many were merged, while others like Jammu & Kashmir, Hyderabad, and Junagarh required special negotiations or military action.
- **Constitutional Formation:** The Constitution of India, enacted on **26th January 1950,** outlined provisions for the Union's territory to accommodate changes.

State Reorganisation Committees:

- The reorganization of Indian states post-independence was a complex process driven by various factors such as language, culture, and regional aspirations.
- Different committees were set up to address these issues and make recommendations for the restructuring of states. Here's a detailed look at the major **State Reorganisation Committees:**

Dhar Commission (1948):

- **Established by: Constituent Assembly**
- **Purpose**: To examine the feasibility of reorganizing Indian states primarily on administrative convenience rather than linguistic lines.
- **Key Recommendation:** The Dhar Commission did not recommend **linguistic states** and suggested reorganizing states based on administrative efficiency, economic viability, and geographical contiguity.
- The recommendation faced widespread opposition, especially from regions demanding linguistic states, like **Andhra Pradesh** for **Telugu-speaking** people.

JVP Committee (1948-1949):

- Members: Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya (hence the name "**JVP**").
- Purpose: To further assess the demand for linguistic states, especially after the Dhar Commission's report was rejected.
- Key Recommendation: The **JVP Committee** rejected the idea of reorganizing states solely on linguistic grounds, citing the potential threat to national unity. However, it allowed for future demands for linguistic states to be considered if they did not threaten national interests.
- Outcome: Though the JVP Committee rejected linguistic states, public demand for Andhra Pradesh increased after the death of **Potti Sriramulu**, who fasted to death for a separate **Telugu** state. This led to the creation of **Andhra Pradesh** in **1953**, setting the stage for more linguistic states.

States Reorganisation Commission (SRC) – 1953:

- Established by: Government of India in 1953 under Prime Minister Jawaharlal Nehru.
- Members:
  - **Fazal Ali (Chairman)**
  - **K. M. Panikkar (Historian)**
  - **H. N. Kunzru (Social reformer)**

- Purpose: To comprehensively review the demands for state reorganization and recommend the best approach.
- **Key Principles Considered:**
  - **Linguistic and Cultural Homogeneity:** Creating states that align with language and cultural identity.
  - **Administrative Convenience:** Ensuring states are efficient for governance.
  - **Economic Viability:** Ensuring new states are economically sustainable.
  - **Preservation of National Unity:** States should not threaten the unity and integrity of India.
- **Key Recommendations:**
  - Reorganization of states on linguistic lines, but with careful consideration to national unity.
  - Creation of **14 states and 6 Union Territories**, including the division of Bombay and Madhya Bharat into linguistic states.
  - Formation of **Andhra Pradesh, Mysore (now Karnataka), Kerala, and Madras (now Tamil Nadu).**
- **Outcome**: The States Reorganisation Act of 1956 was passed, implementing most of the SRC's recommendations. This act led to the redrawing of India's internal borders based on language, marking the beginning of linguistic reorganization.

Other Important State Reorganizations:

Creation of Maharashtra and Gujarat (1960):

- **Background**: The Bombay State was a bilingual state with Marathi and Gujarati-speaking regions. There were increasing demands for separate states for these language groups.
- **Outcome**: In 1960, the state was bifurcated into Maharashtra (Marathi-speaking) and Gujarat (Gujarati-speaking).

Punjab Reorganisation (1966):

- **Background**: The state of Punjab included Hindi, Punjabi, and Pahari-speaking areas, leading to linguistic and regional tensions.
- **Outcome**: The state was divided into Punjab (Punjabi-speaking), Haryana (Hindi-speaking), and Himachal Pradesh (Pahari-speaking) in 1966.

North-Eastern Reorganization (1970s):

- **Background**: The northeastern region, initially part of Assam, witnessed ethnic and linguistic demands for separate states.
- **Outcome**: New states such as **Meghalaya** (1972), **Manipur** (1972), **Tripura** (1972), and **Arunachal Pradesh** (1987) were created.

Creation of Chhattisgarh, Jharkhand, and Uttarakhand (2000):

- **Background**: Demands for separate states from tribal regions and hill regions gained momentum in the 1990s.
- In **2000**, three new states were created: **Chhattisgarh** from Madhya Pradesh, **Jharkhand** from Bihar, and **Uttarakhand** (formerly Uttaranchal) from Uttar Pradesh.

Telangana (2014):

- **Background**: Long-standing demand for a separate state for the Telangana region in Andhra Pradesh due to perceived neglect in terms of development and political representation.
- **Outcome**: Telangana was created as the **29th state** of India in **2014**.

Constitutional Provisions (Articles 1–4):

Article 1:

- **India**, i.e. **Bharat**, is defined as a "**Union of States**."
- The territory of India includes:
  - a) **States**: Recognized regions with their governments.
  - b) **Union Territories (UTs)**: Directly administered by the central government.
  - c) **Acquired Territories**: Any future territories acquired by India.

Article 2:

- Parliament has the power to admit or establish new states.
- Example: The **integration** of Sikkim as a state in **1975**.

Article 3:

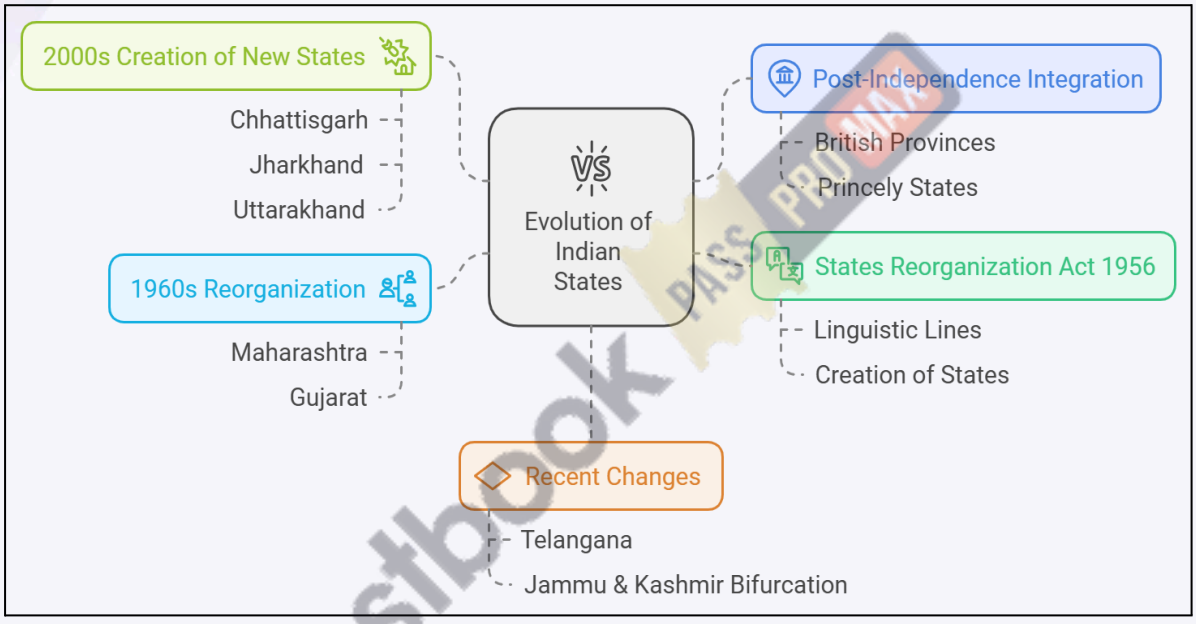
- Parliament can form new states, alter boundaries, or rename states.
- **Procedure**:
  - A bill for altering state boundaries requires prior presidential recommendation.

- The affected state's legislature must be consulted, though its opinion is not binding.

- **Examples**:
  - a) Formation of new states like Jharkhand (2000) and Telangana (2014).
  - b) Reorganization of states based on linguistic lines (States Reorganization Act, 1956).

Article 4:

- Any laws enacted under Articles 2 and 3 are not considered amendments to the Constitution, so they don't need the special procedures for Constitutional amendments.



State Formation and Reorganization in India:

State/UT	Year of Formation	Carved Out From	Reason/Significance
Andhra Pradesh	**1956**	Merged Andhra State with Telangana (Hyderabad State)	First linguistic state (Telugu-speaking regions)
Maharashtra	**1960**	Bombay State	Formed on linguistic lines (Marathi-speaking)

Gujarat	**1960**	Bombay State	Formed on linguistic lines (Gujarati-speaking)
Punjab	**1966**	Punjab	Reorganized; Haryana and Himachal Pradesh created
Haryana	**1966**	Punjab	Created for Hindi-speaking areas of Punjab
Himachal Pradesh	**1971**	Punjab	Became a full state from Union Territory
Meghalaya	**1972**	Assam	Autonomous statehood for tribal regions
Tripura	**1972**	Union Territory	Due to regional demands
Sikkim	**1975**	Independent Kingdom	Merged with India via referendum
Mizoram	**1987**	Assam	Granted statehood after insurgency issues
Arunachal Pradesh	**1987**	Union Territory	Due to strategic and regional importance
Goa	**1987**	Union Territory	Became a state after liberation from Portugal
Chhattisgarh	**2000**	Madhya Pradesh	Regional demands for a separate identity
Jharkhand	**2000**	Bihar	Demands from tribal regions
Uttarakhand	**2000**	Uttar Pradesh	Hill region demanded a separate state

Telangana	**2014**	Andhra Pradesh	Long-standing regional demand
Jammu & Kashmir	**2019 (UT status)**	Special Status (Article 370)	Bifurcated into J&K and Ladakh Union Territories

Union Territories (UTs):

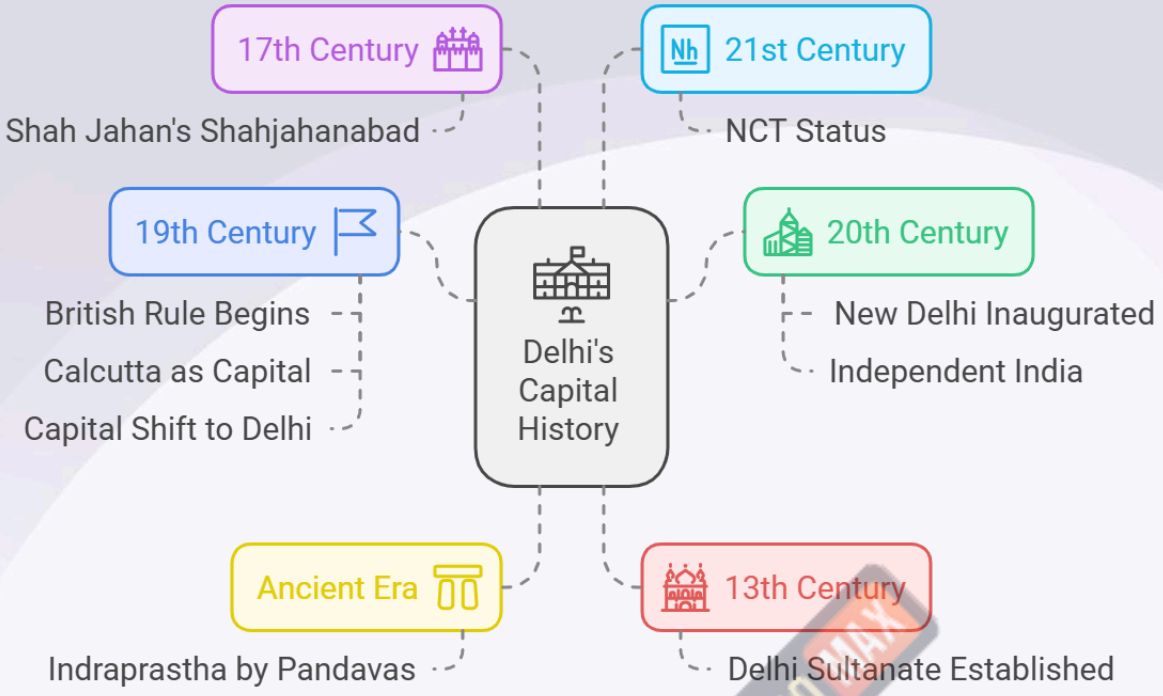
- UTs are regions that do not have the same autonomy as states and are governed directly by the Central Government.
- Some UTs have legislative assemblies (e.g., Delhi, Puducherry) with limited powers.
- Changes:
  - Recent examples include the bifurcation of Jammu & Kashmir into two UTs—Jammu & Kashmir and Ladakh—in 2019.
- Integration of Territories:
  - The Constitution allows for the acquisition of new territories through treaties, agreements, or other methods.

Historical Acquisitions:

- Goa was annexed by **India** in **1961** from **Portuguese** rule and became a state in **1987**.
- **Sikkim** joined India after a referendum in **1975**, becoming the **22nd** state.

Delhi Becoming the Capital of India and its Status as NCT

- The **69th Constitutional Amendment Act, of 1991**, marked a significant turning point in the governance of Delhi.
- This amendment granted Delhi the unique status of a **National Capital Territory (NCT)** with a Legislative Assembly and a Chief Minister, thereby creating a hybrid administrative framework.



Formation of the National Capital Territory of Delhi (1991)

- Before **1991**, Delhi was administered as a Union Territory under the direct control of the Central Government.
- Rapid urbanization and the growing demands of Delhi's residents for better governance and autonomy led to the need for a restructured administrative framework.
- The 69th Constitutional Amendment Act addressed this demand while balancing the central government's control over the capital.

Key Features of the 69th Constitutional Amendment Act

Special Status as NCT:

- Delhi was re-designated as the National Capital Territory of Delhi (NCT), reflecting its unique position as both a union territory and the seat of the central government.
- **Establishment of Legislative Assembly:**
    - A Legislative Assembly was established with the power to legislate on certain subjects in the State List and Concurrent List of the Constitution.
    - The Assembly consists of 70 members elected by the residents of Delhi.
- **Elected Chief Minister and Council of Ministers:**

- The NCT was granted an elected Chief Minister and a Council of Ministers, responsible for aiding and advising the Lieutenant Governor (LG).
- The Chief Minister is the executive head of the Delhi government.

- **Lieutenant Governor as the Administrator:**
  - The Lieutenant Governor (LG) acts as the representative of the President of India in Delhi.
  - The LG has special powers to act independently on matters where the central government has overriding jurisdiction.
- **Dual Governance Structure:**
  - The amendment created a unique administrative framework where governance is shared between the Delhi Government and the Central Government.
  - While the Delhi Government is responsible for certain subjects, the Central Government retains control over critical areas.
- **Division of Powers**
  - The **69th Amendment** introduced a shared power structure for the governance of Delhi:
- **Subjects under the Delhi Government:** The elected government has jurisdiction over subjects such as:
  - **Health**
  - **Education**
  - **Transport**
  - **Public Works**
  - **Social Welfare**
- These subjects fall under the **State List** and **Concurrent List**, subject to limitations set by the **Central Government.**
- **Subjects under the Central Government:** The Central Government retains exclusive control over:
  - **Law and Order**
  - **Police**
  - **Land**
- These powers are exercised through the Ministry of Home Affairs and the Lieutenant Governor.

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- Concurrent Jurisdiction: On matters in the Concurrent List, the laws passed by the Delhi Government require the assent of the LG and may be subject to the President's approval.

Administrative Challenges

- **Conflict between the Delhi Government and Central Government:**
  - The dual governance framework often results in disputes over jurisdiction and authority.
  - Notable issues include disagreements over the control of bureaucrats, police, and decision-making in land-related matters.
- **Role of the Lieutenant Governor:**
  - The LG holds significant powers to intervene in the Delhi Government's decisions, creating friction between the two authorities.
- **Key instances of conflict:**
  - Approval of government policies.
  - Interpretation of the LG's powers in cases of disagreement.
- **Supreme Court Rulings:**
  - Several rulings by the Supreme Court clarified the relationship between the Delhi Government and the LG, emphasizing the need for cooperation while limiting the LG's discretionary powers. Significance of the NCT Framework
- **Enhanced Representation:**
  - The establishment of an elected Legislative Assembly provided Delhi residents with a greater say in governance.
- **Administrative Efficiency:**
  - Subjects like health, education, and transport were decentralized, improving service delivery and accountability.
- **National Importance:**
  - Retaining central control over law and order, police, and land ensured national security and effective administration of the national capital.
- **Balance of Power:**
  - The framework aims to balance the aspirations of Delhi's residents with the strategic and national interests of the Central Government.

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